

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 1266 of 1998

Makbul Ahmed being dead his legal heirs
1(a) Mamtaj Begum and others

----- Defendant-Appellant-Petitioners

=Versus=

Fazilater Nessa being dead his legal heirs
1(a) Shoeb Chowdhury and others

----- Plaintiff-Respondent-Opposite Parties

Mr. Fazlul Karim Chowdhury, Advocate

----- For the Petitioners

Dr. Rafiqur Rahman, with

Mr. A.B.M. Matiaur Rahman, Advocates

----- For the Opposite Parties

Heard on 29.05.2018 and
Judgment on 30.05.2018

At the instance of the present-defendant-appellant-petitioners, Makburl Ahmed being dead his legal heirs 1(a) Mamtaj Begum and others, this Rule has been issued calling upon the opposite party Nos. 1-10 at the cost of the petitioners to show cause as to why the impugned judgment and decree dated 23.09.1997 passed by the learned Additional District Judge, 1st court, Noakhali in Title Appeal No. 67 of 1993 affirming the judgment and decree dated 23.07.1992 passed by the learned Subordinate Judge, Sadar, Noakhali in Title Suit No. 314 1974 should not be set aside.

The relevant facts for disposal of this Rule, *inter alia*, are that the present-opposite parties (now deceased) filed the Title Suit No. 314 of 1974 in the court of the then learned Subordinate Judge, Noakhali for declaration of title, confirmation of possession and also for declaration of benamder (by amendment of the plaint) regarding the suit land precisely described in the Schedule of the plaint. The case in the plaint is that Lal Miah purchased the suit land in benami of his two wives namely, Raushan Bibi and Jamila Khatun by a deed dated 30.06.1903 due to repay the borrowed money from other persons. Lal Miah lost the original deed but obtained a certified copy thereof in the year of 1915. Lal Miah mortgaged the said property to Krishna Mohan Pal and Durgadas Pal. The land was recorded in his name. Lal Miah transferred the suit land described in Schedule-‘Ka’ to the plaintiff-opposite party No. 1 on 30.06.1920, thereafter, the plaintiff paid rent and also dues of Durgadas Pal and Krishana Mohan Pal by putting their signatures of their mortgaged deed.

Further case is that the plaintiff, thereafter, settled the land to the son’s of Lal Miah and Jamila Khatun and also settled to the other persons some measurement of land, accordingly, the plaintiff-opposite party No. 1 oral power in the land measuring 3.80 acres in C.S. Dag Nos. 835, 974, 1014, 1017, 1064 and also settled in favour of his daughter who is the present-opposite party No. 2. The land was

recorded accordingly. The suit land described in the Schedule-‘Ka’ was owned and possessed by them. The present-opposite party Nos. 16-24 Naku Mia obtained a Kabuliyat on 20th Boishakh, 1359 B.S. for cultivation only and after two years time he returned the land to the plaintiff. The defendant Nos. 15-25 fraudulently made some deeds from Ambia Khatun and Asiya Begum, the daughter’s of Lal Miah which the plaintiff came to know recently. When the defendants have been threatening to dispossess from the Schedule-‘Kha’ of the suit land, he filed the suit.

The suit was contested by the present-petitioner as the substituted defendant No. 1(Ka) to 1(Uma) and the defendant No. 15 by filing written statement. It is further contended that Lal Miah never purchased the suit land in Bename in the name of his two wives Raushan Bibi and Jamila Khatun but Lal Miah was cultivated their land on behalf of their wives. Before the District Survey, the said wives died leaving behind Ambia, Asia as the heirs. Jamila died leaving behind a husband and a son. As the said Asia and Ambia were minor C.S. record was published in the name of Lal Miah wrongly. Even though, Lal Miah mortgaged the land, he was never an owner but he was only owned and possessed a portion of land as an heir. M.R.R. Khatian was published thereof.

The further contention was that Raushan Bibi and Jamila Khatun purchased schedule-‘Ka’ land from their own money and Lal Miah as their husband only looked after the suit land. The daughter of Raushan Bibi sold the land to the defendant Nos. 15 and 16 to 24 by a deed dated 24.11.1942 for the land measuring 2.58 acres and handed over the original deed to them. The defendants have been owning and possessing the suit land and also transferred some portion of land to the other defendants but there was no formal partition among the parties, therefore, the suit was an ejmali property. The plaintiff-opposite party No. 1 forcefully took away the original deed in order to defraud the defendants.

After hearing the parties and considering the evidence, the learned trial court decreed the suit by his judgment and decree dated 23.07.1992. Being aggrieved the present petitioners as the appellants preferred the Title Appeal No. 67 of 1993 in the court of learned District Judge, Khulna which was heard by the learned Additional District Judge, court No. 1, Noakhali on transfer who by his judgment and decree disallowed the appeal and thereby affirmed the judgment of the learned trial court by his judgment and decree dated 23.07.1997. This revisional application has been filed under Section 115 (1) of the Code of Civil Procedure challenging the legality of the

said impugned judgment and decree passed by the learned appellate court and the Rule has been issued thereupon.

Mr. Fazlul Karim Chowdhury, the learned Advocate appearing for the petitioners, submits that the learned trial court misread the evidence produced by the parties and thereby shifter burden of prove upon the defendants instead of the present-plaintiff-opposite parties under the settled principle of law regarding benami transaction as to source of money as well as mortgage of the suit land by Lal Miah, thus, committed an error of law. The learned appellate court also failed to consider the relevant evidence in this case, thus, concurrently made a mistake by affirming the judgment which is liable to be set aside and the Rule should be made absolute.

The learned Advocate further submits that the learned trial court framed an issue to the effect of whether the suit was barred by the Law of Limitation but the courts below did not decide this issue or gave any finding in that behalf inspite of objection raised in the written statement as well as in the memo of appeal, if the courts below would have considered the legal aspect of the said issue with those of the evidences on record it might have found that the suit was hopelessly barred by the Law of Limitation as the prayer for declaration of banamder made long after 71 years of registration of the disputed deed when none of the vendors, purchasers or the

benamder claimant were alive and the plaintiffs brought the claim of banamder when third parties, namely, the heirs as the holders of the said deed as well as their transferees, namely, the defendant Nos. 15-24 who claimed an interest in the suit land on the basis of their purchase deed executed in the year 1942 within the knowledge and information of the plaintiffs, thus, the Rule should be made absolute.

The Rule has been opposed by the present opposite party Nos. 1-10.

Dr. Rafiqur Rahman, the learned Senior Counsel, appearing along with Mr. A.B.M. Matiur Rahman, the learned Advocate, submits that the present-plaintiff-opposite parties could successfully prove their case before the learned trial court by adducing and producing sufficient evidence as to ownership of Lal Miah and the subsequent transfer by him, as such, the learned trial court decreed the suit lawfully and the learned appellate court after considering the relevant evidence concurrently found in favour of the present-opposite parties on the basis of the valid evidence produced by the present-opposite parties, as such, the courts below committed no error of law, as such, no interference from this Court is called for.

He also submits that the present-plaintiff-opposite parties came to know about the deed dated 26.11.1942 when the present-defendant-petitioner came to dispossess them from the suit land by force which

prompted them to file the suit within the limitation period under the Provision of the Limitation Act but the present-petitioner obtained the present Rule by misleading the court regarding the benami transaction and also on the ground of limitation period, as such, the Rule should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the Annexures therein, in particular, the impugned judgment and decree and also considering the materials in the lower courts record, it appears to me that the present-opposite parties as the plaintiffs filed the title suit for declaration of title, confirmation of possession, permanent injunction, and also a benami transaction regarding the suit land measuring 5.26 acres.

The unique of factual aspects of this case is that the plaintiff produced a document dated 30.06.1903 which is an old document of 120 years claiming that the husband Lal Miah purchased the suit land in the name of his two wives namely, Raushan Bibi and Jamila Khatun. The husband Lal Miah claimed himself as a holder of right by a benamai transaction and his wives as the benamder because the purchased deed contains only the names of his wives. In a benami transaction a claimant must prove certain conditions to get benefit of

benami transaction, which are, possession of the original documents and land, intention or motive to create the transaction along with other requirements. In the instant case, the original plaintiff being dead, thus, the subsequent plaintiff-opposite parties case is that they were subsequent purchaser from Lal Miah and also subsequent transferees by way of settlement in favour of Khorshda Begum. One question would certainly arise whether Lal Miah had the entitlement to transfer the land by deed dated 30.06.1920 Exhibit-1(Ka) eventhough, the deeds were in the name of his wives Raushan Bibi and Jamila Khatun.

In order to search the root, I had to go back more than 120 years and the prevailing social economical system in this part of the world. After examining the document I find it difficult to believe that the two wives, Raushan Bibi and Jamila Khatun, purchased the suit land from their own source of money. In this regard, the plaintiff claimed that due to save himself from the loan money Lal Miah purchased the suit land in the name of his wives. On the other hand, the present-defendant-petitioner could not substantiate their claim that Raushan Bibi and Jamila Khatun purchased the land from their own money under the British Colonial System and being the members of the Muslim Family. I, therefore, consider that the deed dated 30.06.1903 Exhibit-1 was a benami transaction and Raushan Bibi and Jamila Khatun were benamders. After the death of said Raushan Bibi and

Jamila Khatun their heirs could not succeed the land and transfer of land by their heirs could not be a valid transaction because Lal Miah was a C.S. recorded owner who transferred the land by way of mortgage and by way of sale deed and also by way of settlement.

Regarding the question of limitation period, the learned Advocate for the petitioners claimed that the suit was filed 71 years after the deed executing on 27.11.1942. In this regard, I have considered the materials on record and the submissions of the learned Advocates. Article 120 of the Limitation Period provides that:

Description of suit	Period of Limitation	Time from which period begins to run.
120. Suit for which no period of limitation is provided elsewhere in this schedule	Part-VII-Six years.(contd) six years	When the right to sue accrues

The above provision of law satisfies the period for accruing a right to sue by stipulating the period of 6 years. In the instant case, the plaint contains that the petitioner tried to dispossess the plaintiff on 30.04.1974 as they were in possession as the recorded owner without any interruption from any party for such a long period of time. On the other hand, the learned Advocate for the petitioner submits that there were some transfers of land by the heirs of Raushan Bibi in the year of 1944. Regarding the above legal issue of limitation period, I have carefully examined that Exhibits-‘8 and 8-Ka’. I have examined the

law and the evidence of the respective parties and I consider that apparently the present-plaintiff-opposite parties came to know as to any oral transfer on the date when the plaintiff-opposite parties were subjected to any force regarding title and possession from the present-petitioners. Accordingly, the plaintiffs were very much within the limitation period in filing the present suit. I also consider that the matter of a benami transaction does not need to prove after 120 years from the date of execution of a deed as a benami transaction because the present-petitioners must have been aware of the transfer made by Lal Miah as a benami of his wives Raushan Bibi and Jamila Khatun by their legal heirs but none of them came before court challenging the transfer by Lal Miah on 30.06.1920 in favour of the predecessor of the present-plaintiff-opposite parties. Accordingly, the plaintiff-opposite parties could prove their case successfully regarding their entitlement and possession upon the suit land.

Now I am inclined to examine the impugned judgment and decree passed by the courts below. The learned trial court came to a lawful conclusion to decree the suit after considering the evidence in detail on the basis of the following finding:

“ নালিশা জায়গার খতিয়ান লাল মিয়ার না-ম ও তাহার স্ত্রী না-ম খতিয়ান-ন খোর-শদা লিপি আ-ছ। লাল মিয়ার কাছ থে-ক ১ নং মূল বাদী খরিদ সু-এ মালিক হইয়া-ছ এবং খরিদা দলিল ও বাদীপক্ষ আদাল-ত দাখিল করিয়া-ছ এবং উহা প্রদর্শনী-১(ক) মার্ক হইয়া-ছ। ১

নং বাদী থে-ক ২ নং বাদী ব-ন্দবস্ত সূ-এ মালিক হইয়া-ছ। বাদীপ-ক্ষর দাখিলী খতিয়ান দ্বারা প্রমানিত হয় যে, বাদীপক্ষ নালিশা ভূমি-ত মালিক দখলকার আ-ছ। কবাণ খতিয়ান দ্বারা নালিশা ভূমি-ত বাদী প-ক্ষর দখল প্রমান ক-র। বাদীপক্ষ দাখিলী খাজনা দাখিল দ্বারাও প্রমানিত হয় যে, বাদীপক্ষ নালিশা ভূমি-ত দখ-ল আ-ছ। কারণ বাদীপ-ক্ষর নালিশা ভূমি-ত দখল প্রমান ক-র।”

The learned appellate court also came to a lawful conclusion by finding concurrently in favour of the plaintiff-opposite parties on the basis of the following finding:

“ বাদীপ-ক্ষর ১/৪ নং সাক্ষীর উপ-রাঙ বক্তব্য থে-ক রওশন বিবি ও জমিলা খাতুন কর্তৃক নি-জ-দর অ-র্থ ক তপশি-লর ভূমি খরিদ করা সম্প-র্ক -কান প্রকার ধারণা প্রতিষ্ঠা করা যায় না। কেননা তা-দর কেউ রৌশন বিবি ও জমিলা খাতু-নর কেনার প্রত্যক্ষ সাক্ষী নয়। অন্যদি-ক বাদীপক্ষে কতিপয় দালিলিক প্রমান রয়েছে যে গুলোর মাধ্যমে ধারণা প্রতিষ্ঠা করা যায় যে লাল মিয়া ক তপশি-লর জমি তার দুই স্ত্রী রৌশন বিবি ও জমিলা খাতু-নর -বনামী-ত খরিদ ক-রছিল। লাল মিয়ার না-ম প্রস্তুত জেলা জরিপি খতিয়ান হ-য়-ছ। পরবর্তী-ত লাল মিয়ার শ্বলবর্তী-দর না-ম এম, আর, আর, খতিয়ান (প্রদর্শন নং-৩ক-৩খ) প্রস্তুত হ-য়-ছ। লাল মিয়া নি-জ-র অধিকার ব-ল ক তপশি-লর সাকুল্য ভূমি বিভিন্ন সম-য় রেহান দিয়া-ছ (প্রদর্শন নং-২/২(ক))। এসব কিছুই ক তপশি-লর ভূমি-ত লাল মিয়ার একক আধিপত্য প্রমান ক-র। বাদীপক্ষ লাল মিয়া কর্তৃক তারস্ত্রী-দর বনামী-ত খরিদ করার মোটিভ প্রমান কর-ত সক্ষম হ-য়-ছ।”

In view of the above discussions and after perusal of the judgment and decree passed by the learned courts below I am of the opinion that the learned appellate court committed no error of law by dismissing the appeal preferred by the defendant-petitioner by

affirming the impugned judgment and decree passed by the learned trial court. I am therefore, not inclined to interfere into the judgment and decree passed by the learned appellate court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The office is directed to communicate this judgment and order to the concerned court immediately and the office is also directed to send down the lower courts' record at once.